

AMENDING ACT

The Drugs and Magic Remedies (Objectionable Advertisements) Amending Act, (42 of 1963).

LIST OF ABBREVIATIONS USED

Cl.,cls.	.	.	.	.	.	<i>for</i>	Clause, clauses.
Ins.	.	.	.	.	.	„	Inserted.
Notifn.	.	.	.	.	.	„	Notification.
S., ss.	.	.	.	.	.	„	Section, sections.
Sch.	.	.	.	.	.	„	Schedule.
Subs.	.	.	.	.	.	„	Substituted.
w.e.f.	.	.	.	.	.	„	with effect from.

THE DRUGS AND MAGIC REMEDIES (OBJECTIONABLE ADVERTISEMENTS)
ACT, 1954

ARRANGEMENT OF SECTIONS

SECTIONS

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4. Prohibition of misleading advertisements relating to drugs.
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THE SCHEDULE.

THE DRUGS AND MAGIC REMEDIES (OBJECTIONABLE ADVERTISEMENTS)
ACT, 1954

ACT No. 21 OF 1954¹

[30th April, 1954.]

An Act to control the advertisement of drugs in certain cases, to prohibit the advertisement for certain purposes of remedies alleged to possess magic qualities and to provide for matters connected therewith.

BE it enacted by Parliament as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Drugs and Magic Remedies (Objectionable Advertisements) Act, 1954.

(2) It extends to the whole of India ^{2***}, and applies also to persons domiciled in the territories to which this Act extends who are outside the said territories.

(3) It shall come into force on such date³ as the Central Government may, by Notification in the Official Gazette, appoint.

2. Definitions.—In this Act, unless the context otherwise requires,—

(a) ‘advertisement’ includes any notice, circular, label, wrapper, or other document, and any announcement made orally or by any means of producing or transmitting light, sound or smoke;

(b) ‘drug’ includes—

(i) a medicine for the internal or external use of human beings or animals;

(ii) any substance intended to be used for or in the diagnosis, cure, mitigation, treatment or prevention of disease in human beings or animals;

(iii) any article, other than food, intended to affect or influence in any way the structure or any organic function of the body of human beings or animals;

(iv) any article intended for use as a component of any medicine, substance or article, referred to in sub-clauses (i), (ii) and (iii);

(c) ‘magic remedy’ includes a talisman, *mantra*, *kavacha*, and any other charm of any kind which is alleged to possess miraculous powers for or in the diagnosis, cure, mitigation, treatment or prevention of any disease in human beings or animals or for affecting or influencing in any way the structure or any organic function of the body of human beings or animals;

⁴[(cc) ‘registered medical practitioner’ means any person,—

(i) who holds a qualification granted by an authority specified in, or notified under section 3 of the Indian Medical Degrees Act, 1916 (7 of 1916) or specified in the Schedules to the Indian Medical Council Act, 1956 (102 of 1956); or

(ii) who is entitled to be registered as a medical practitioner under any law for the time being in force in any State to which this Act extends relating to the registration of medical practitioner;]

(d) ‘taking any part in the publication of any advertisement’ includes—

1. This Act has been extended to Pondicherry by Reg. 7 of 1963, sec. 3 and Sch. I (w.e.f. 1-10-1963), the State of Sikkim, *vide* S.O. 949 (E), dated 20th October, 1988 and extended to Goa, Daman and Diu by Reg. 11 of 1963, s. 3 and Sch., (w.e.f. 1-8-1965).

2. The words “except the State of Jammu and Kashmir” omitted by Act 34 of 2019, s. 95 and the V Sch. (w.e.f. 31-10-2019).

3. 1st April, 1955, *vide* notifi. No. S.R.O. 511, dated 26th February, 1955, *see* Gazette of India, 1955, Part II, s. 3.

4. Ins. by Act 42 of 1963, s. 2 (w.e.f. 7-12-1963).

(b) in the case of a subsequent conviction, with imprisonment which may extend to one year, or with fine, or with both.

¹[**8. Powers of entry, search, etc.**—(1) Subject to the provisions of any rules made in this behalf, any Gazetted Officer authorised by the State Government may, within the local limits of the area for which he is so authorised,—

(a) enter and search at all reasonable times, with such assistants, if any, as he considers necessary, any place in which he has reason to believe that an offence under this Act has been or is being committed;

(b) seize any advertisement which he has reason to believe contravenes any of the provisions of this Act:

Provided that the power of seizure under this clause may be exercised in respect of any document, article or thing which contains any such advertisement, including the contents, if any, of such document, article or thing, if the advertisement cannot be separated by reason of its being embossed or otherwise, from such document, article or thing without affecting the integrity, utility or saleable value thereof;

(c) examine any record, register, document or any other material object found in any place mentioned in clause (a) and seize the same if he has reason to believe that it may furnish evidence of the commission of any offence punishable under this Act.

(2) The provisions of the Code of Criminal Procedure, 1898 (5 of 1898) shall, so far as may be, apply to any search or seizure under this Act as they apply to any search or seizure made under the authority of a warrant issued under section 98 of the said Code.

(3) Where any person seizes anything under clause (b) or clause (c) of sub-section (1), he shall, as soon as may be, inform a Magistrate and take his orders as to the custody thereof.]

9. Offences by companies.—(1) If the person contravening any of the provisions of this Act is a company, every person who, at the time the offence was committed, was in charge of, and was responsible to, the company for the conduct of the business of the company as well as the company shall be deemed to be guilty of the contravention and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any such person liable to any punishment provided in this Act if he proves that the offence was committed without his knowledge or that he exercised all due diligence to prevent the commission of such offence.

(2) Notwithstanding anything contained in sub-section (1) where an offence under this Act has been committed by a company and it is proved that the offence was committed with the consent or connivance of, or is attributable to any neglect on the part of, any director or manager, secretary or other officer of the company, such director, manager, secretary or other officer of the company shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation.—For the purposes of this section,—

(a) ‘company’ means any body corporate and includes a firm or other association of individuals; and

(b) ‘director’ in relation to a firm means a partner in the firm.

²[**9A. Offences to be cognizable.**—Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (5 of 1898), an offence punishable under this Act shall be cognizable.]

10. Jurisdiction to try offences.—No Court inferior to that of a Presidency Magistrate or a Magistrate of the first class shall try any offence punishable under this Act.

1. Subs. by Act 42 of 1963, s. 5, for section 8 (w.e.f. 7-12-1963).

2. Ins. by s. 6, *ibid.* (w.e.f. 7-12-1963).

¹[**10A. Forfeiture.**—Where a person has been convicted by any Court for contravening any provision of this Act or any rule made thereunder, the Court may direct that any document (including all copies thereof), article or thing, in respect of which the contravention is made, including the contents thereof where such contents are seized under clause (b) of sub-section (1) of section 8, shall be forfeited to the Government.]

11. Officers to be deemed to be public servants.—Every person authorised under section 8 shall be deemed to be a public servant within the meaning of section 21 of the Indian Penal Code (45 of 1860).

12. Indemnity.—No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done under this Act.

13. Other laws not affected.—The provisions of this Act are in addition to, and not in derogation of the provisions of any other law for the time being in force.

²[**14. Savings.**—Nothing in this Act shall apply to—

(a) any sign board or notice displayed by a registered medical practitioner on his premises indicating that treatment for any disease, disorder or condition specified in section 3, the Schedule or the rules made under this Act, is undertaken in those premises; or

(b) any treatise or book dealing with any of the matters specified in section 3 from a *bona fide* scientific or social standpoint; or

(c) any advertisement relating to any drug sent confidentially in the manner prescribed under section 16 only to a registered medical practitioner; or

(d) any advertisement relating to a drug printed or published by the Government; or

(e) any advertisement relating to a drug printed or published by any person with the previous sanction of the Government granted prior to the commencement of the Drugs and Magic Remedies (Objectionable Advertisements) Amendment Act, 1963 (42 of 1963):

Provided that the Government may, for reasons to be recorded in writing, withdraw the sanction after giving the person an opportunity of showing cause against such withdrawal.]

15. Power to exempt from application of Act.—If in the opinion of the Central Government public interest requires that the advertisement of any specified drug or class of drugs ³[or any specified class of advertisements relating to drugs] should be permitted, it may, by notification in the Official Gazette, direct that the provisions of sections 3, 4, 5 and 6 or any one of such provisions shall not apply or shall apply subject to such conditions as may be specified in the notification to or in relation to the advertisement of any such drugs or class of drugs ³[or any such class of advertisements relating to drugs].

16. Power to make rules.—(1) The Central Government may, by notification in the Official Gazette, make rules for carrying out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may—

(a) specify any ⁴[disease, disorder or condition] to which the provisions of section 3 shall apply;

1. Ins. by Act 42 of 1963, s. 7 (w.e.f. 7-12-1963).

2. Subs. by s. 8, *ibid.*, for section 14 (w.e.f. 7-12-1963).

3. Ins. by s. 9, *ibid.* (w.e.f. 17-12-1963).

5. Subs. by s. 10, *ibid.*, for “disease or condition” (w.e.f. 7-12-1963).

(b) prescribe the manner in which advertisements of articles or things referred to in clause (c) of
¹* * * section 14 may be sent confidentially.

²[(3) Every rule made under this Act shall be laid as soon as may be after it is made, before each House of Parliament while it is in session for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if before the expiry of the session in which it is so laid or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.]

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1. The words, brackets and figure “sub-section (1) of” omitted by Act 42 of 1963, s. 10 (w.e.f. 7-12-1963).
2. Ins. by s. 10, *ibid.* (w.e.f. 7-12-1963).

¹[THE SCHEDULE
[See sections 3(d) and 14]

S. No. Name of the disease, disorder or condition

1. Appendicitis
2. Arteriosclerosis
3. Blindness
4. Blood poisoning
5. Bright's disease
6. Cancer
7. Cataract
8. Deafness
9. Diabetes
10. Diseases and disorders of the brain
11. Diseases and disorders of the optical system
12. Diseases and disorders of the uterus
13. Disorders of menstrual flow
14. Disorders of the nervous system
15. Disorders of the prostatic gland
16. Dropsy
17. Epilepsy
18. Female diseases (in general)
19. Fevers (in general)
20. Fits
21. Form and structure of the female bust
22. Gall stones, kidney stones and bladder stones
23. Gangrene

1. Added by Act 42 of 1963, s. 11 (w.e.f. 7-12-1963).

S. No. Name of the disease, disorder or condition

24. Glaucoma
25. Goitre
26. Heart diseases
27. High or low blood pressure
28. Hydrocele
29. Hysteria
30. Infantile paralysis
31. Insanity
32. Leprosy
33. Leucoderma
34. Lockjaw
35. Locomotor ataxia
36. Lupus
37. Nervous debility
38. Obesity
39. Paralysis
40. Plague
41. Pleurisy
42. Pneumonia
43. Rheumatism
44. Ruptures
45. Sexual impotence
46. Smallpox
47. Stature of persons
48. Sterility in women
49. Trachoma
50. Tuberculosis
51. Tumours

S. No. Name of the disease, disorder or condition

52. Typhoid fever

53. Ulcers of gastro-intestinal tract

54. Venereal diseases, including syphilis, gonorrhoea, soft chancre, venereal granuloma and lympho granuloma.]

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STATEMENT OF OBJECTS AND REASONS

“In recent years there has been a great increase in the number of objectionable advertisements published in newspapers or magazines or otherwise relating to alleged cures for venereal diseases, sexual stimulants and alleged cures for diseases and conditions peculiar to women. These advertisements tend to cause the ignorant and the unwary to resort to self-medication with harmful drugs and appliances, or to resort to quacks who indulge in such advertisements for treatment which causes great harm. It is necessary in the public interest to put a stop to such undesirable advertisements. This Bill is intended for this purpose.

2. It is considered that the necessary legislation should be enacted by the Centre in order to deal with this menace on uniform lines. Such legislation is relatable to the Entry “Drugs and Poisons” in the Concurrent List in the Seventh Schedule to the Constitution of India in so far as undesirable advertisements relating to drugs are concerned and to the Entry “Legal, Medical and other Professions” in the same List in regard to similar advertisements of magic remedies by persons who practise the profession of administering such remedies. The Bill when enacted will supersede State laws where they exist to the extent to which they are repugnant to the Central law.”

NEW DELHI;
The 12th August, 1953.

A.KAUR.